SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 3533 of 2023 (YEAR: 2023)

CORAM: J.K. MAHESHWARI, K.V. VISWANATHAN

Universal Sompo General Insurance Co. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Suresh Chand Jain
... Respondent(s)

Acts Referred:	Consumer Protection Act, 2019
Sections:	Section 58 Consumer Protection, Section 67 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Clarified appellate hierarchy under the Consumer Protection Act 2019, discouraging High Courts from entertaining Article 226 petitions against NCDRC orders when statutory appeals exist.

RATIO DECIDENDI

The Court held that: Clarified appellate hierarchy under the Consumer Protection Act 2019, discouraging High Courts from entertaining Article 226 petitions against NCDRC orders when statutory appeals exist. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Universal Sompo General Insurance Co. Ltd. v. Suresh Chand Jain (Civil Appeal No. 3533 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 2019, particularly Section 58 Consumer Protection, Section 67 Consumer Protection. Clarified appellate hierarchy under the Consumer Protection Act 2019, discouraging High Courts from entertaining Article 226 petitions against NCDRC orders when statutory appeals exist.

OPERATIVE ORDER

ORDER: Decided